



IN THE NATIONAL COMPANY LAW TRIBUNAL,
COURT- IV, MUMBAI BENCH

C.P.(CAA)/28(MB)2025
IN
C.A.(CAA)/195(MB)2024

*In the matter of
the Companies Act, 2013
AND
In the Matter of*

*Section 230-232 of the Companies Act,
2013 and other applicable provisions of the
Companies Act, 2013 read with the
Companies (Compromises, Arrangements
and Amalgamations) Rules, 2016*

AND

*In the matter of Scheme of Amalgamation
Between*

BRE Asia III India Holdings Limited
(Transferor Company)

With

Horizon Industrial Parks Private Limited
(Transferee Company)

AND

THEIR RESPECTIVE SHAREHOLDERS

Horizon Industrial Parks Private Limited
[CIN: U60231MH2009PTC222156]

...Applicant Company

BRE Asia III India Holdings Limited
[Company Number: 195553 GBC]

...Non-Appllcant Company

Pronounced: 09.06.2025

CORAM

SHRI ANIL RAJ CHELLAN

HON'BLE MEMBER (TECHNICAL)

SHRI. K. R. SAJI KUMAR

HON'BLE MEMBER (JUDICIAL)



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Appearances: Hybrid

For the Applicant Company: Adv. Hemant Sethi a/w. Adv. Devanshi
Sethi & Adv. Tanaya Sethi i/b. Hemant
Sethi, Advocates

For Regional Director: Mr. Bhagwati Prasad, Asst. Director,
Office of the RD (WR), MCA, Mumbai

ORDER

1. This Application seeks sanction of the Tribunal under Section 234 read with Sections 230 to 232 of the Companies Act, 2013 (Act) to the Scheme of Amalgamation (Scheme) of BRE Asia III India Holdings Limited (Transferor Company) with Horizon Industrial Parks Private Limited (Transferee Company) (Applicant Company), and their respective Shareholders.
2. Heard the Ld. Counsel for the Applicant Company and the Assistant Director, representing the Regional Director (RD), Western Region (WR).
3. It is observed that the Board of Directors of the Transferee Company and Transferor Company in their respective Board meetings held on 31.07.2024 and 05.08.2024, have approved the Scheme, and the relevant Board Resolutions are annexed to the Company Scheme Application.
4. It is submitted that the rationale and benefits mentioned in the Scheme are as under:

"The Transferor Company and the Transferee Company are part of the same group.

The amalgamation will:



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- 
- i) *consolidate the business operations, encompassing the investee companies of the Transferor Company engaged in the business of constructing and renting, with the business of the Transferee Company to achieve greater economies of scale, operational rationalization and organizational efficiency, wider market reach and customer base, pooling of knowledge and expertise, and to reduce redundant costs;*
 - ii) *aim towards creation of a single unified entity with a wider and stronger capital and asset base, having greater capacity for conducting its operations more efficiently and competitively; and*
 - iii) *simplify decision making, reduce duplication of administrative responsibilities and regulatory compliances.*

This Scheme is expected to be in the best interest of and will not adversely affect the rights and interests of, the shareholders, creditors, employees and all other stakeholders.”

5. The Company Petition is filed in consonance with Sections 230 to 232 of the Act along with the order dated 09.01.2025 passed in CA (CAA) No. 195/(MB)/2024 (First Motion) and order in C.P.(CAA) No. 28/(MB)/2025 (Second Motion) dated 23.01.2025 of this Tribunal.
6. It is submitted that the Applicant Company has complied with all the requirements as per the directions of this Tribunal and has filed necessary affidavits of compliance. Moreover, the Applicant Company undertakes to comply with all statutory/regulatory requirements, as mandated under the Act and the Rules made thereunder. The undertaking given by the Applicant Company is taken on record.



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7. The RD (Western Region), Ministry of Corporate Affairs, Mumbai, has filed its Report dated 07.03.2025, *inter alia*, stating its observations on the Scheme in para 2 (a) to (k) of the Report. In response to the observations made by the RD and the RoC, Mumbai, the Transferee Company had filed an Affidavit-in-Reply dated 10.03.2025 and has given necessary clarifications and undertakings as shown in the Table below: -

Sl. No.	Observation(s) of the Regional Director/RoC Mumbai.	Response of the Applicant Companies
2(a)(i)	<i>That on examination of the report of the Registrar of Companies, Mumbai dated 06.03.2025 (Annexed as Annexure A-1) that the Transferee Company falls within the jurisdiction of ROC, Mumbai. It is submitted that no complaint and/ or representation regarding the proposed scheme of Amalgamation has been received against the Petitioner Companies. Further, the Petitioner Transferee Company have filed Financial Statements up to 31.03.2024 further observations in ROC report are as under:</i>	The Transferee Company submits that this observation made by the ROC is merely factual in nature.



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	<i>That the ROC Mumbai in his report dated 06.03.2025 has stated that No Inquiry, Inspection follow up, Investigation follow up & prosecution is pending against the subject applicant companies.</i>	
2(a)(ii)	<i>The Transferee shall comply with RBI Regulations in relation to Cross border Merger.</i>	The Transferee Company submits that it had already submitted a certificate ensuring compliance with the relevant Foreign Exchange Management (Cross Border Merger) Regulation, 2018 (' Cross Border Merger Regulations '). A copy of the certificate dated 05.08.2024, from two directors and the Company Secretary of the Transferee Company ensuring compliance of Cross Border Merger Regulations along with a copy of the Cross-Border Merger Regulations is attached as Annexure A Colly of its Affidavit-in Reply.



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2(a)(iii)	<i>Interest of the creditors should be protected.</i>	The Applicant Companies hereby undertake and confirm that the interest of the creditors shall be protected.
2(a)(iv)	<i>May be decided on its merits.</i>	The Transferee Company submits that this observation made by the ROC is merely factual in nature.
2(b)	<i>In compliance of AS-14 (IND AS-103), the Petitioner Companies shall pass such accounting entries which are necessary in connection with the scheme to comply with other applicable Accounting Standards such as AS-5 (IND AS-8) etc.</i>	The Second Applicant Company hereby undertakes and confirms that it shall pass the necessary accounting entries in its books of accounts to give effect to the Scheme in compliance with the applicable accounting standards prescribed under Section 133 of the Act and Clause 11 of the Scheme. Certificate to this effect has been procured from M/s Walker Chandiook & Co. LLP, statutory auditors of the Petitioner Company on 31.07.2024.



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2(c)	<i>The Hon'ble NCLT may kindly direct the Petitioner Companies to file an affidavit to the extent that the Scheme enclosed to the Company Application and Company Petition are one and same and there is no discrepancy or no change is made.</i>	The Transferee Company hereby confirms that the Scheme enclosed in the company scheme application and the Scheme enclosed in the company scheme petition are one and the same and there is no discrepancy or deviation, and no change is made.
2(d)	<i>The Petitioner Companies under provisions of section 230(5) and 234 of the Companies Act, 2013 read with Rule 25A of the Companies (Compromise, Arrangement & Amalgamation) Rule, 2016 have to serve notices to concerned authorities which are likely to be affected by the amalgamation or arrangement. Further, the approval of the scheme by this Hon'ble Tribunal may not deter such authorities to deal with any of the issues arising after giving effect to the scheme. The decision</i>	The Second Applicant Company confirms that it has served notices along with copy of the Scheme upon: - (i) The Central Government through the office of Regional Director, (Western Region), Mumbai; (ii) The jurisdictional Registrar of Companies, Maharashtra, Mumbai; (iii) The Income Tax Authority within whose jurisdiction the Applicant Company is assessed to tax; Income Tax Central Revenue Building,



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*of such Authorities is binding on the
petitioner companies concerned.*

Central Circle 1(3), Building,
1, Queens Rd, Shivaji Nagar,
Bengaluru, Karnataka –
560001;

(iv) The Nodal Officer of Income
Tax Department to Pr. CCIT,
Mumbai at 3rd Floor, Aayakar
Bhawan, Maharishi Karve
Road, Mumbai – 400020,
Maharashtra;

(v) The Reserve Bank of India;

(vi) The jurisdictional Goods and
Service Tax Authority;

(vii) The Competition
Commissioner of India (CCI);
and

(viii) The Ministry of Corporate
Affairs.

In accordance with Section
230(5) of the Act and as directed by
the Hon'ble Tribunal *vide* its order
dated 09.01.2025. Further, the
Transferee Company have also



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		served notice of petition to the above authorities. Compliance affidavits dated 17.01.2025 and 14.02.2025 to this effect were duly filed on behalf of the Transferee Company with the Hon'ble Tribunal vide diary number 2709138093852024/1 and 2709138008182025/1, respectively. The Transferee Company also confirms that if any such authority issues any direction to it after the Scheme becomes effective, then such directions shall be dealt with in accordance with the applicable laws.
2(e)	<i>As per Definition of the Scheme,</i> 'Appointed Date' means April 1, 2024 or such other date as may be fixed or approved by the NCLT. 'Effective Date' means the last of the dates on which all the conditions and matters referred to in Clause 17	The Applicant Company submits that the Report itself states that the Appointed Date and Effective Date have been duly defined in the Scheme. Further, the Applicant Company clarifies that the company scheme application was filed on 26.09.2024



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hereof have been fulfilled or such other date as may be fixed or approved by the NCLT or other Appropriate Authority.

References in this Scheme to the date of 'coming into effect of this Scheme' or 'effectiveness of this Scheme' shall mean the Effective Date;

In this regard, it is submitted that Section 232 (6) of the Companies Act, 2013 states that the scheme under this section shall clearly indicate an appointed date from which it shall be effective and the scheme shall be deemed to be effective from such date and not at a date subsequent to the appointed date. However, this aspect may be decided by the Hon'ble Tribunal taking into account its inherent powers.

and that they have duly complied with the requirements set out in circular no. F. No. 7/12/2019/CL-I dated 21.08.2019 issued by the Ministry of Corporate Affairs. A copy of the filing receipt of the company scheme application is attached as **Annexure B** of the said reply.



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	<i>The Petitioners may be asked to comply with the requirements as clarified vide circular vide circular no. F. No. 7/12/2019/CL-I dated 21.08.2019 issued by the Ministry of Corporate Affairs.</i>	
2(f)	<i>Petitioner Companies shall undertake to comply with the directions of the concerned sectoral Regulatory and CCI, if so required.</i>	The Applicant Company undertakes to comply with the sectoral regulations, if any, issued by the directions of the concerned sectoral regulatory in accordance with the law. It is further submitted that, the erstwhile Competition Commission of India (Procedure in regard to the transaction of business relating to combinations) Regulations, 2011 (CCI Regulations) was in effect at the time of approval of the Scheme by the Board of Directors of the Petitioner Company and the Non-Petitioner Company. The CCI Regulations provides that the categories of combinations



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		mentioned in Schedule I of the CCI Regulations, are ordinarily not likely to cause an appreciable adverse effect on competition in India and therefore exempt from seeking / do not require the prior approval of the Competition Commission of India. Regulation 4 and the relevant provision of Schedule I to the erstwhile CCI Regulations are reproduced below for ready reference: <i>“4. Categories of transactions not likely to have appreciable adverse effect on competition in India.</i> <i>In view of the duty cast upon the Commission under section 18 and powers conferred under section 36 of the Act, and having regard to the mandate given to the Commission to, inter- alia, regulate combinations which have caused</i>
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		or are likely to cause appreciable adverse effect on competition in terms of sub-section (1) of section 6 of the Act, it is clarified that since the categories of combinations mentioned in Schedule I are ordinarily not likely to cause an appreciable adverse effect on competition in India, notice under sub-section(2) of section 6 of the Act need not normally be filed. ” Item 9 of Schedule I of the erstwhile CCI Regulations provides that: “9. A merger or amalgamation of two enterprises where one of the enterprises has more than fifty per cent (50%) shares or voting rights of the other enterprise, and/or merger or amalgamation of enterprises in which more than fifty per cent (50%) shares or
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		<i>voting rights in each of such enterprises are held by enterprise(s) within the same group.</i> <i>Provided that the transaction does not result in transfer from joint control to sole control."</i> The Applicant Company and the Non-Applciant Company involved in the present Scheme are the part of the same group. Therefore, their amalgamation qualifies for the exemption available under Item 9 of Schedule I of the CCI Regulations. The control is already unified and remains unchanged, with no transfer from joint control to sole control. Thus, this Scheme does not require filing with the CCI under the Competition Act, read with erstwhile CCI Regulations. A copy of the erstwhile CCI Regulations is
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		enclosed as Annexure C of the aforesaid reply. The Applicant Company further submits that the erstwhile CCI Regulations have recently been replaced with the Competition Commission of India (Combinations) Regulations, 2024, and the criteria for combinations that do not require prior notification to the CCI is contained in the Schedule to the Competition (Criteria for Exemption of Combinations) Rules, 2024 (Revised CCI Exemption Rules). Given that both the companies involved in the present Scheme are part of the same group, prior notification to the CCI would not be required as a result of Rule 3 read with the exemption under Item 10 of the Schedule to the Revised CCI Exemption Rules, which are
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		reproduced below for ready reference: <u>"3. Criteria for exemption of categories of Combinations. —</u> <i>the categories of combinations which fulfil the criteria mentioned in the Schedule shall be exempted from the requirement to comply with sub-sections (2), (2A) and (4) of section 6 of the Act."</i> Item 10 of the Schedule to the Revised CCI Exemption Rules: <i>"A merger or amalgamation of enterprises within the same group provided that the transaction does not result in change in control."</i> Given that there is no change in control and all the companies involved in the present Scheme are part of the same group, the exemption set out at Item 10 of the
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		Schedule to the Revised CCI Exemption Rules applies to the Scheme. A copy of the Revised CCI Exemption Rules is enclosed as Annexure D of the Applicant Company's reply. In any case, the Applicant Company undertakes to comply with the applicable regulations issued by the CCI in accordance with the law.
2(g)	<i>The Hon'ble Tribunal may kindly seek the undertaking that this Scheme is approved by the requisite majority of members and creditors as per Section 230(6) of the Act in meetings duly held in terms of Section 230(1) read with subsection (3) to (5) of Section 230 of the Act and the Minutes thereof are duly placed before the Tribunal.</i>	The Applicant Company submits that vide order dated 09.01.2025 passed by the Hon'ble Tribunal in C.A. (CAA) No. 195/MB/2024, the meetings of shareholders and secured and unsecured creditors were dispensed with in view of the consent affidavits filed by all the shareholders, the sole secured creditor and 91.40% of the unsecured creditor of the Applicant Company. Hence, the



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		question of convening the meeting does not arise.
2(h)	<i>The Petitioner Company states that the Transferee Company shall be in compliance with provisions of Section 2(1B) of the Income Tax Act, 1961. In this regard, the petitioner company shall ensure compliance of all the provisions of Income Tax Act and Rules thereunder applicable in this matter.</i>	The Applicant Company undertakes to ensure compliance with the provisions of section 2(1B) of the Income-tax Act, 1961.
2(i)	<i>It is observed that the Transferor Company is a foreign company therefore, the petitioner company may be directed to place on record the prior approval of RBI under section 234 of the Companies Act, 2013 and other applicable laws and also may be directed to submit undertaking that all due compliances of RBI guideline / FEMA have been complied with.</i>	The Applicant Company submits that as per Regulation 9(1) of the Cross Border Merger Regulations, the cross border merger undertaken in accordance with the Cross Border Merger Regulations <u>shall be deemed to have the prior approval of RBI</u> as required under Rule 25A of Amalgamation Rules.



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2(j)	<i>Petitioner Company may be directed to place on record prior approval of Reserve Bank of India as required under section 234(2) of the Companies Act, 2013 and may also directed to undertake that requirement of FEMA regulations has been complied with by the petitioner company.</i>	In this regard, the Applicant Company re-iterates that a declaration ensuring that compliance with Regulation 9(1) of the Cross Border Merger Regulations is annexed as Annexure A of this response by virtue of which the Scheme of Amalgamation shall be deemed to have prior approval of Reserve Bank of India as required in Rule 25A of the Amalgamation Rules. Therefore, no further approval from the Reserve Bank of India is required under the instant case.
2(k)	<i>The registered office of the Transferor Company is situated in Mauritius; therefore, petitioner company may be directed to do all necessary compliances of Law of Mauritius Government.</i>	The Applicant Company undertakes to comply with all necessary and applicable provisions of the Applicable Laws in the Republic of Mauritius.

8. The Assistant Director, appeared on behalf of RD, Western Region, Mumbai



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submitted that the above explanations and clarifications in response to the said Report and the responses filed *vide* Affidavit in Reply by the Applicant Company are satisfactory and they have no objection to approval of the Scheme by the Tribunal.

9. We observe that no adverse comments have been made regarding the state of affairs of the Transferee Company. Accordingly, the reply filed by the Applicant Company to the above-mentioned report is taken on record. We conclude that the objections/observations to the Scheme raised by the RD and ROC, have been adequately replied.
10. The Ld. Counsel for the Applicant Company submits that this Tribunal has the jurisdiction to adjudicate the present Company Scheme and relied upon the decisions of NCLT Mumbai in *Horizon Industrial Parks Private Limited.*, [CP(CAA) No. 125/MB/2024 in CA(CAA) No 82/MB/2024]; *Tata Autocomp Systems Limited.*, [CP(CAA) No. 4378/MB/2019 in CA(CAA) No. 2788/MB/2019] and *Trendsutra Client Services Private Limited.*, [CP(CAA) No. 155/MB/2021 in CA(CAA) No. 74/MB/2021].
11. As per clause 10 of the Scheme, upon the Scheme becoming effective and in consideration for the amalgamation of the Transferor Company into the Transferee Company, the Transferee Company shall, without any further act or deed, issue and allot equity shares of Rs.10/- each as fully paid up to the extent indicated below, to all the ordinary shareholders of the Transferor Company whose names are recorded in the register of members of the Transferor Company on the Record Date in the following proportion:

"41,770 (Forty-One Thousand Seven Hundred and Seventy) fully paid up equity shares of the Transferee Company of INR 10 (Indian



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***Rupees Ten only) each for every 10,000 (Ten Thousand) ordinary
shares of the Transferor Company each fully paid up."***

It is also clarified that the equity shares shall be issued and allotted under the 'Foreign Direct Investment' route [as set out under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019].

12. It is submitted that there are no winding-up petitions or applications under the Insolvency and Bankruptcy Code, 2016, or other similar statute admitted against the Applicant Company and Non-Applicant Company.
13. The Ld. Counsel for the Transferee Company submits that there are no ongoing adjudication or recovery proceedings, prosecution initiated, or any other enforcement action taken, against the Non-Applicant Company, its current promoters and directors. Further, there are no proceedings or investigation pending against it under Sections 210-217; 219; 220; and 223-227 of the Act.
14. No objector has come before this Tribunal to oppose the Scheme or has any party controverted any averments made in the Company Scheme Petition.
15. From the materials available on record, the Scheme appears to be fair and reasonable and is not in violation of any provisions of law or contrary to public interest/policy.
16. Since all the requisite statutory compliances have been fulfilled, Company Petition **C.P.(CAA) No. 28/MB/2025** connected with C.A.(CAA) No. 195/MB/2024 is **made absolute** in terms of the prayer in the Company Scheme Petition.
17. Authorities, including the Reserve Bank of India, the Competition Commission of India and the Income Tax Department, will be at liberty to examine the compliance



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of various provisions of law and take action in accordance with the law,
notwithstanding the sanction of the Scheme.

18. The Applicant Company is directed to file a certified copy of this Order along with a copy of the Scheme with the concerned Registrar of Companies, electronically along with E-Form INC-28, in addition to physical copy within 30 days from the date of receipt of the Order from the Registry of this Tribunal.
19. The Applicant Companies are further directed to provide a copy of this Order and the Scheme duly authenticated by the Designated Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty payable within 60 days from the date of receipt of certified copy from the Registry of this Tribunal.
20. All authorities concerned to act on a copy of this Order along with the Scheme duly authenticated by the Designated Registrar of this Tribunal.
21. Any person interested in the above matter is at liberty to apply to this Tribunal for such directions as may be necessary.
22. The Appointed Date of the Scheme is **01.04.2024**.
23. Accordingly, the above **C.P. (CAA) 28/MB/2025** is **allowed and disposed of**.

Sd/-

ANIL RAJ CHELLAN
MEMBER (TECHNICAL)

//LRA-Tanmay Jain//

Sd/-

K. R. SAJI KUMAR
MEMBER (JUDICIAL)

Certified True Copy _____
Date of Application 10/06/2025
Number of Pages 22
Fee Paid Rs. 110/-
Applicant called for collection copy on 16/6/25
Copy prepared on 16/6/2025
Copy issued on 16/6/2025

Ran H. J.
16/6/25
Assistant Registrar

National Company Law Tribunal Mumbai Bench



ANNEXURE - F

000735

SCHEME OF AMALGAMATION

BETWEEN

BRE ASIA III INDIA HOLDINGS LIMITED
(TRANSFEROR COMPANY)

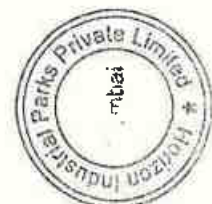
AND

HORIZON INDUSTRIAL PARKS PRIVATE LIMITED
(TRANSFeree COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS

(UNDER SECTIONS 230 TO 232 READ WITH SECTION 234 AND OTHER
APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013 AND RULES
THEREUNDER)



SAYLI
RAJENDR
A SHETYE

Digitaly signed by SAYLI RAJENDR A SHETYE
20/07/2018 11:11:11 AM
C:\Users\rajendr\Documents\BRE ASIA III INDIA HOLDINGS LIMITED\Scheme of Amalgamation\Scheme of Amalgamation.docx
Digitally signed by SAYLI RAJENDR A SHETYE
DN: cn=SAYLI RAJENDR A SHETYE, o=BRE ASIA III INDIA HOLDINGS LIMITED, email=sayli.rajendr@breasia.com, c=IN
Date: 2018.07.20 11:11:11 +05'30'

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GENERAL

I. PREAMBLE

This Scheme of Amalgamation (*as defined hereinafter*) provides for the amalgamation of BRE Asia III India Holdings Limited (hereinafter referred to as '**Transferor Company**') with Horizon Industrial Parks Private Limited (hereinafter referred to as '**Transferee Company**') and is presented under Sections 230 to 232 read with Section 234 and other applicable provisions of the Act (*as defined hereinafter*) and the rules thereunder.

This Scheme of Amalgamation also provides for various matters consequential and integrally connected herewith.

II. DESCRIPTION OF COMPANIES

1. The Transferor Company is an existing private company limited by shares, incorporated in Mauritius on March 21, 2023, having company number – 195553 / GBC and its registered office at Level 6, Tower A, 1 Exchange Square, Wall Street, Ebene 72201, Republic of Mauritius. The Transferor Company holds a Global Business License issued by the Financial Services Commission in Mauritius and its main activity is undertaking investment holding activities. The shares of Transferor Company are not listed on any stock exchanges. The Transferor Company has made investments in Indian companies which are primarily engaged in the business of constructing and renting of warehouses.
2. The Transferee Company is an existing company incorporated on September 22, 2009, having corporate identification number U60231MH2009PTC222156 under the Companies Act, 1956, having its registered office at One World Centre, Unit No 1501B Tower 1, 841, Jupiter Textile Mills, Senapati Bapat Marg, Mumbai - 40001 Maharashtra, India. The equity shares of the Transferee Company are not listed on any stock exchanges. The Transferee Company is primarily engaged in the business of development and lease of industrial and logistics spaces.



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III. RATIONALE OF THE SCHEME

The Transferor Company and the Transferee Company are part of the same group. The amalgamation will:

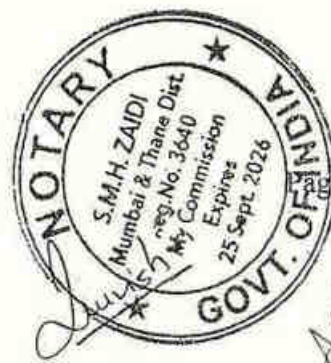
- i) consolidate the business operations, encompassing the investee companies of the Transferor Company engaged in the business of constructing and renting, with the business of the Transferee Company to achieve greater economies of scale, operational rationalization and organizational efficiency, wider market reach and customer base, pooling of knowledge and expertise, and to reduce redundant costs;
- ii) aim towards creation of a single unified entity with a wider and stronger capital and asset base, having greater capacity for conducting its operations more efficiently and competitively; and
- iii) simplify decision making, reduce duplication of administrative responsibilities and regulatory compliances.

This Scheme is expected to be in the best interest of, and will not adversely affect the rights and interests of, the shareholders, creditors, employees and all other stakeholders.

IV. PARTS OF THE SCHEME

This Scheme is divided into following sections:

- Part A:** Definitions and Share Capital
- Part B:** Amalgamation of Transferor Company into Transferee Company
- Part C:** General terms and conditions and other matters consequential and integrally connected with the Scheme



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PART A**DEFINITIONS AND SHARE CAPITAL****1. DEFINITIONS**

In this Scheme, unless the context or meaning otherwise requires (i) terms defined in the introductory paragraphs and recitals shall have the same meanings throughout this Scheme; and (ii) the following words and expressions, wherever used (including in the recitals and the introductory paragraphs above), shall have the following meaning:

- 1.1 **'Act' or 'the Act'** means the (Indian) Companies Act, 2013 including any statutory modification, amendment or re-enactment thereof for the time being in force, and the (Indian) Companies Act, 1956 to the extent applicable;
- 1.2 **'Applicable Law(s)'** means all applicable legislations, statutes, notification, rules, regulations, guidelines, judgements, decisions, or common law, policy, code, directives, ordinance, schemes, notices, instruments, decrees, orders, instructions, by-laws and other legislative measures or decisions having the force of law, enacted or issued or sanctioned by any Appropriate Authority including any modification or re-enactment thereof for the time being in force;
- 1.3 **'Appointed Date'** means April 1, 2024 or such other date as may be fixed or approved by the NCLT;
- 1.4 **'Appropriate Authority'** means any governmental, statutory, regulatory, administrative, departmental or public body or authority of the Relevant Jurisdictions to the extent that the rules, regulations and standards, requirements, procedures or orders of such authority, body or other organization have the force of law, including but not limited to the NCLT, having the requisite jurisdiction over the Companies, Registrar of Companies, Regional Director, Ministry of Corporate Affairs, and other regulatory authorities;



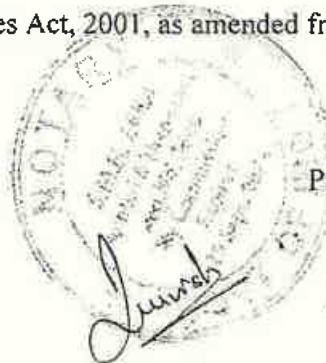
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- 1.5 **'Board of Directors' or 'Board'** means the board of directors of the Transferor Company or the Transferee Company, or collectively the board of directors of the Transferor Company and the Transferee Company, as the case may be, as the context may require and includes a committee thereof;
- 1.6 **'Central Government'** means the Government of India; the Central Government has and *vide* Notification No. S.O 4090(E) dated December 19, 2016 delegated the power vested in it under Section 230 to 232 and Section 234 of the Act to the Regional Director, Ministry of Corporate Affairs having jurisdiction over the Companies;
- 1.7 **'Companies'** mean collectively the Transferor Company and the Transferee Company and **'Company'** shall mean each of them, individually;
- 1.8 **'Effective Date'** means the last of the dates on which all the conditions and matters referred to in Clause 17 hereof have been fulfilled or such other date as may be fixed or approved by the NCLT or other Appropriate Authority.

References in this Scheme to the date of 'coming into effect of this Scheme' or 'effectiveness of this Scheme' shall mean the Effective Date;

- 1.9 **'Employees'** means all the permanent employees, temporary employees and / or contract employees of the Transferor Company as on the Effective Date;
- 1.10 **FVCI'** shall mean a Foreign Venture Capital Investor, registered pursuant to the SEBI (Foreign Venture Capital Investor) Regulations, 2000;
- 1.11 **'INR' or 'Rupees'** means rupees being the lawful currency of the Republic of India;
- 1.12 **'IT Act'** means the Income-tax Act, 1961 and the rules framed thereunder, including any statutory modification, amendment or re-enactment thereof for the time being in force;
- 1.13 **'Mauritius Act'** means the Mauritius Companies Act, 2001, as amended from time to time;



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- 1.14 **'NCLT'** or **'National Company Law Tribunal'** means the Mumbai Bench or any other jurisdictional Bench of National Company Law Tribunal as constituted and authorized as per the provisions of the Act for approving any scheme of arrangement, compromise or reconstruction of Companies under Sections 230 to 232 read with Section 234 of the Act;
- 1.15 **'Order'** means an order passed by the NCLT sanctioning the Scheme of Amalgamation pursuant to the provisions of the Act;
- 1.16 **'Record Date'** means the date to be fixed by the Board of Directors of the Transferee Company, for the purpose of determining names of the shareholders of the Transferor Company, who shall be entitled to receive equity shares of the Transferee Company upon this Scheme coming into effect;
- 1.17 **'Regional Director'** means the Regional Director, Western Region, within whose jurisdiction the registered office of the Transferee Company is situated;
- 1.18 **'Registrar of Companies'** or **'ROC'** means the relevant Registrar of Companies having jurisdiction over the Transferor Company and the Transferee Company;
- 1.19 **'Relevant Jurisdictions'** means the territories of the Republic of India and Republic of Mauritius;
- 1.20 **'Scheme of Amalgamation'** or **'the Scheme'** or **'this Scheme'** means the present scheme of amalgamation framed under the provisions of Sections 230 to 232 and Section 234 of the Act and other applicable provisions of the Act and rules made thereunder, if any, whereunder the Transferor Company are proposed to be amalgamated with the Transferee Company in the present form or with modification(s) made under Clause 19 of this Scheme as approved or directed by the NCLT or any other Appropriate Authorities;
- 1.21 **'SEBI'** means the Securities and Exchange Board of India;



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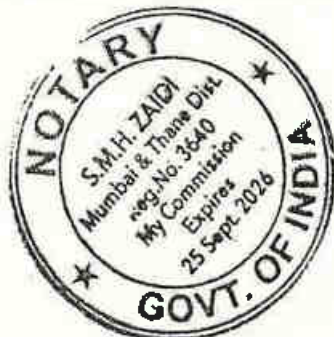
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- 1.22 **'Tax Laws'** means all Applicable Laws dealing with Taxes including but not limited to income-tax, wealth tax, sales tax / value added tax, service tax, goods and services tax, excise duty, customs duty or any other levy of similar nature;
- 1.23 **'Tax'** or **'Taxes'** shall mean all taxes on net income, gross income, gross receipts, sales, use, services, ad valorem, value-added, capital gains, corporate income tax, minimum alternate tax, buyback distribution tax, dividend distribution tax, transfer, franchise and profits; withholding tax; property tax; water tax; any tax payable in a representative capacity, goods and service tax; service tax, value-added tax, duties of custom and excise, octroi duty, entry tax, stamp duty, other governmental charges or duties or other taxes or statutory payments in relation to contract labour and / or other contractors and / or sub-contractors, statutory pension or other employment benefit plan contributions, fees, assessments or charges of any kind whatsoever, including any surcharge or cess thereon, together with any interest and any penalties, additions to tax or additional amount with respect thereto;
- 1.24 **'Transferee Company'** means Horizon Industrial Parks Private Limited, a private company incorporated under the provisions of the Companies Act, 1956, on September 22, 2009;
- 1.25 **'Transferor Company'** means BRE Asia III India Holdings Limited, an unlisted private company incorporated under the provisions of the Mauritius Act on March 21, 2023;
- 1.26 **'USD'** or **'United States Dollar'** shall mean the lawful currency of United States of America.

The expressions which are used in this Scheme and not defined in this Scheme, shall, unless repugnant or contrary to the context or meaning hereof, have the same meaning ascribed to them under the Act and other Applicable Laws, rules, regulations, bye-laws, as the case may be, or any statutory modification or re-enactment thereof from time to time.



2. **DATE OF COMING INTO EFFECT AND OPERATIVE DATE**



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The Scheme set out herein in its present form or with such modifications or amendments as directed by the NCLT or other Appropriate Authority shall be effective from the Appointed Date herein, although it shall be operative from the Effective Date.



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3. SHARE CAPITAL

3.1 Transferor Company

The stated capital of the Transferor Company as on March 31, 2024 was as follows:

Particulars	Amount in USD
2,09,36,000 ordinary shares of USD 1	2,09,36,000
Total	2,09,36,000

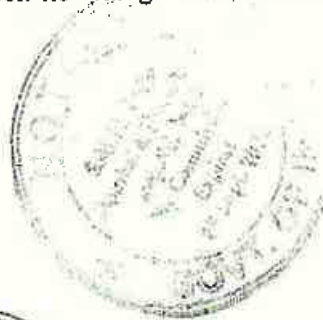
Subsequent to March 31, 2024, the Transferor Company issued 1,47,03,660 ordinary shares to its existing ordinary shareholder on August 5, 2024. Hence as on the date of approval of the scheme, the stated capital of the Transferor Company is 3,56,39,660 ordinary shares of USD 3,49,36,000.

3.2 Transferee Company

The authorized, issued, subscribed and paid-up share capital of the Transferee Company as on March 31, 2024 was as follows:

Particulars	Amount in INR
Authorised Share Capital	
60,00,00,000 equity shares of INR 10 each	6,00,00,00,000
Total	6,00,00,00,000
Issued, Subscribed and Paid-up Capital	
53,56,67,819 equity shares of INR 10 each	5,35,66,78,190
Total	5,35,66,78,190

Subsequent to March 31, 2024, there has been no change in the share capital of the Transferee Company.



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PART B

**AMALGAMATION OF TRANSFEROR COMPANY INTO TRANSFeree
COMPANY**

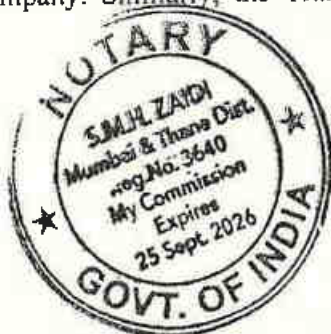
4. **Transfer and vesting of assets and liabilities and entire business of the Transferor Company**
- a) With effect from the Appointed Date and pursuant to Sections 230 to 232 read with Section 234 and other applicable provisions of the Act and Applicable Law, and subject to the provisions of this Scheme, the Transferor Company shall stand merged with the Transferee Company as a going concern and all assets and liabilities of the Transferor Company shall, without any further act, instrument or deed, stand transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company, so as to become as and from the Appointed Date, the assets and liabilities of the Transferee Company by virtue of operation of law, and in the manner provided in this Scheme. For the purposes of the Applicable Laws of the Republic of Mauritius, all references in this Scheme to the Scheme shall be deemed to refer to the merger of the Transferor Company with and into the Transferee Company, with the Transferee Company being the surviving entity in such merger.
- b) In respect of such assets and properties of the Transferor Company, which are movable in nature (including but not limited to all intangible assets), or are otherwise capable of transfer by delivery or possession or by endorsement, the same shall stand transferred by the Transferor Company to the Transferee Company upon coming into effect of this Scheme and shall, ipso facto and without any other order to this effect, become the assets and properties of the Transferee Company without requiring any deed or instrument of conveyance for transfer of the same.
- c) With respect to the assets of the Transferor Company other than those referred to in sub Clause (b) above, including all rights, title and interests in the agreements (including agreements for lease or license of the properties), investments in shares, mutual funds, bonds and any other securities, sundry debtors, claims from customers or otherwise, outstanding loans and advances, if any, recoverable in cash or in kind or for value to be



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received, bank balances and deposits, if any, with any Appropriate Authority, customers and other persons, whether or not the same is held in the name of the Transferor Company, the same shall, without any further act, instrument or deed, be transferred to and/or be deemed to be transferred to the Transferee Company, with effect from the Appointed Date by operation of law. With regard to the licenses/ leases of the properties, the Transferee Company will be entitled to enter into novation agreements, if it is so required.

- d) All the brands and trademarks owned by the Transferor Company including registered and unregistered trademarks along with all rights of commercial nature including attached goodwill, title, interest, labels and brand registrations, copyrights trademarks and all such other industrial and intellectual property rights of whatsoever nature shall stand transferred to the Transferee Company by operation of law. The Transferee Company shall take such actions as may be necessary and permissible to get the same transferred and/ or registered in the name of the Transferee Company.
- e) Upon effectiveness of the Scheme, all debts / liabilities incurred, debentures, loans / moneys borrowed, obligations and duties of the Transferor Company as on the Appointed Date shall, without any further act or deed, be and stand transferred to and be deemed as debts incurred or moneys borrowed by the Transferee Company to the extent that they are outstanding as on the Appointed Date and the Transferee Company shall meet, discharge and satisfy the same.
- f) Unless otherwise agreed between the Transferor Company and the Transferee Company, the transfer of all the assets of the Transferor Company, as aforesaid, shall be subject to the encumbrances, if any, over or in respect of any of the assets or any part thereof, provided however that such encumbrances shall be confined only to the relevant assets of the Transferor Company or part thereof on or over which they are subsisting on and no such encumbrances shall extend over or apply to any other assets of the Transferee Company. Any reference in any security documents or arrangements, if any, (to which the Transferor Company is a party) related to any assets of the Transferor Company shall be so construed to the end and intent that such security shall not extend, nor be deemed to extend, to any of the other asset(s) of the Transferee Company. Similarly, the Transferee Company shall not be required to create any

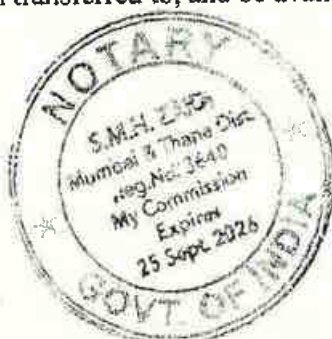


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additional security over assets transferred under this Scheme for any loans, debentures, deposits or other financial assistance already availed of / to be availed of by it, and the encumbrances in respect of such indebtedness of the Transferee Company shall not extend or be deemed to extend or apply to the assets so transferred.

- g) On and from the Effective Date and till such time that the name(s) of the bank accounts of the Transferor Company have been replaced with that of the Transferee Company, the Transferee Company shall be entitled to maintain and operate the bank accounts of the Transferor Company in the name of the Transferor Company and for such time as may be determined to be necessary by the Transferee Company. All cheques and other negotiable instruments, payment orders received or presented for encashment which are in the name of the Transferor Company after the Effective Date shall be accepted by the bankers of the Transferee Company and credited to the account of the Transferee Company, if presented by the Transferee Company.
- h) Without prejudice to the provisions of the foregoing sub-clauses of this Clause 4 and upon the effectiveness of this Scheme, the Transferor Company and the Transferee Company may execute any and all instruments or documents and do all the acts, deeds and things as may be required, including filing of necessary particulars and/ or modification(s) of charge, necessary applications, notices, intimations or letters with any Appropriate Authority or person to give effect to the Scheme.
- i) Benefits of any and all corporate approvals as may have already been taken by the Transferor Company, whether being in the nature of compliances or otherwise under Applicable Laws, read with the applicable rules and regulations made thereunder, shall automatically be to the benefit of the Transferee Company and the said corporate approvals and compliances shall be deemed to have been taken/complied with by the Transferee Company.
- j) With effect from the Appointed Date, all the consents held or availed of by, and all rights and benefits that have accrued to, the Transferor Company, pursuant to the provisions of Section 232 read with Section 234 of the Act and under Applicable Laws, shall without any further act, instrument or deed, be transferred to, or be deemed to have been transferred to, and be available to, the Transferee Company so as to become



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as and from the Appointed Date, the consents, estates, assets, rights, title, interests and authorities of the Transferee Company and shall remain valid, effective and enforceable on the same terms and conditions to the extent permissible under Applicable Laws to ensure continuation of operations of the Transferor Company in the Transferee Company without any hindrance and the consents shall be appropriately mutated by the Appropriate Authority concerned therewith in favour of the Transferee Company as if the same were originally given by, issued to or executed in favour of the Transferee Company, and the Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Transferee Company.

- k) All contracts, deeds, bonds, agreements, indemnities, guarantees or other similar rights or entitlements whatsoever, schemes, arrangements and other instruments, rights, entitlements and consents for the purpose of carrying on the business of the Transferor Company, and in relation thereto, and those relating to tenancies, privileges, powers, facilities of every kind and description of whatsoever nature in relation to the Transferor Company, or to the benefit of which the Transferor Company may be eligible and which are subsisting or having effect immediately before this Scheme coming into effect, shall by endorsement, by delivery or recorded or by operation of law pursuant to the order of the NCLT sanctioning the Scheme, and on this Scheme becoming effective be deemed to be contracts, deeds, bonds, agreements, indemnities, guarantees or other similar rights or entitlements whatsoever, schemes, arrangements and other instruments, rights, entitlements and consents of the Transferee Company. Such properties and rights described hereinabove shall stand transferred to the Transferee Company and shall be deemed to be the property and become the property by operation of law as an integral part of the Transferee Company. Such contracts and properties described above shall continue to be in full force and continue as effective as hitherto in favour of or against the Transferee Company and shall be the legal and enforceable rights and interests of the Transferee Company, which can be enforced and acted upon as fully and effectually as if it were the Transferor Company. Upon the effectiveness of the Scheme, the rights, benefits, privileges, duties, liabilities/ debt incurred and moneys borrowed, obligations and interest whatsoever, arising from or pertaining to contracts and properties relating to the Transferor Company, shall be deemed to have been entered into and stand assigned, transferred and novated to the Transferee Company by



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operation of law and the Transferee Company shall be deemed to be the Transferor Company's substituted party or beneficiary or obligor thereto, it being always understood that the Transferee Company shall be the successor in the interest of the Transferor Company in relation to the properties or rights mentioned hereinabove. In relation to the same, any procedural requirements required to be fulfilled solely by the Transferor Company (and not by any of its successors), shall be fulfilled by the Transferee Company as if it were the duly constituted attorney of the Transferor Company.

- l) Without prejudice to the other provisions of this Scheme, the Transferee Company may, at any time after the effectiveness of the Scheme, in accordance with the provisions hereof, if so required under any Applicable Law or otherwise, take such actions and execute such deeds (including deeds of adherence), confirmations, other writings, arrangements with any party to any contract or arrangement to which the Transferor Company is a party or any writings as may be necessary in order to give effect to the provisions of this Scheme. With effect from the Appointed Date, the Transferee Company shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of the Transferor Company and to carry out or perform all such formalities or compliances referred to above, on the part of the Transferor Company.
- m) On and from the Effective Date, and thereafter, the Transferee Company shall be entitled to enforce all pending contracts and transactions and issue credit notes on behalf of the Transferor Company, in the name of the Transferee Company in so far as may be necessary until the transfer of rights and obligations of the Transferor Company to the Transferee Company under this Scheme have been given effect to under such contracts and transactions.
- n) The Transferor Company has applied for registration under the SEBI (Foreign Venture Capital Investor) Regulations, 2000 on July 13, 2024. As on the date of approval of this Scheme, the application is pending with SEBI. Notwithstanding anything to the contrary, it is clarified that on and from the Effective Date, and if the FVCI registration has been granted by SEBI to Transferor Company, the Transferor Company shall cease to carry on business as an FVCI, and the FVCI Registration shall neither be transferred



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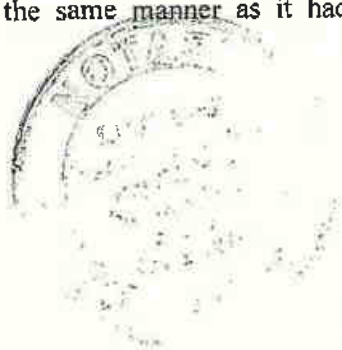
to nor vested in the Transferee Company pursuant to the Scheme. In this regard, the Transferor Company shall undertake all necessary actions under Applicable Laws to surrender such FVCI Registration.

5. Business and property in trust for the Transferee Company

- a) With effect from the Appointed Date upto and including the Effective Date:
- i) The Transferor Company shall carry on and be deemed to have carried on the business and activities and shall stand possessed of all the assets and properties, in trust for the Transferee Company and shall account for the same to the Transferee Company.
 - ii) Any income or profit accruing or arising to the Transferor Company and all costs, charges, expenses and losses or Taxes (including but not limited to advance tax, tax deducted at source, Taxes withheld / paid in foreign country, etc.), arising or incurred by the Transferor Company shall for all purposes be treated as the income, profits, costs, charges, expenses and losses or Taxes, as the case may be, of the Transferee Company and shall be available to the Transferee Company for being disposed-off in any manner as it thinks fit.
- b) With effect from the Appointed Date, all debts, liabilities, duties and obligations of the Transferor Company as on the close of business on the date preceding the Appointed Date, whether or not provided in the books of the Transferor Company and all liabilities debts, duties, obligations which arise or accrue on or after the Appointed Date shall be deemed to be the debts, liabilities, duties and obligations of the Transferee Company.

6. Conduct of business till Effective Date

- a) With effect from Appointed Date and up to the Effective Date:
- i) The Transferor Company shall carry on its business with reasonable diligence and in the same manner as it had been doing hitherto before and the Transferor



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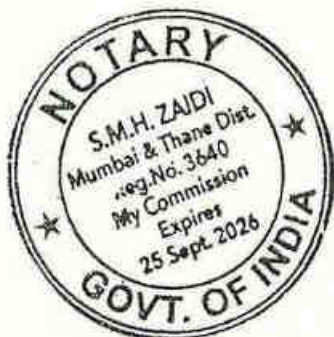
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Company shall not alter or expand its business except with the written concurrence of the Transferee Company.

- ii) The Transferor Company shall not, without the written concurrence of the Transferee Company, alienate, charge or encumber its assets, or undertake any borrowings or distribute any dividends, or issue its shares or vary its share capital in any manner.
- b) With effect from the Effective Date, the Transferee Company shall commence and carry on and shall be authorized to carry on the businesses carried on by the Transferor Company.
- c) The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the Central Government and all other agencies, departments and authorities concerned as are necessary under any law for such consents, approvals and sanctions which the Transferee Company may require to own and carry on the business of the Transferor Company.

7. Legal proceedings

- a) All suits, actions or legal proceedings of whatsoever nature by or against the Transferor Company pending and / or arising at the Appointed Date shall be continued and / or enforced until the Effective Date as desired by and as per instructions by the Transferee Company. As and from the Effective Date, the legal proceedings shall be continued and enforced by or against the Transferee Company in the same manner and strictly to the same extent as would or might have been continued and enforced by or against the Transferor Company.
- b) Further, the aforementioned proceedings shall not abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of the Transferor Company with the Transferee Company or anything contained in the Scheme.



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- c) On and from the Effective Date, the Transferee Company shall, if required, initiate any legal proceedings in relation to the Transferor Company in the same manner and to the same extent as would or might have been initiated by the Transferor Company.

8. Contracts, deeds and other instruments

- a) Subject to the other provisions of this Scheme, all contracts, deeds, bonds, agreements, lease agreements, leave and license agreements, incentives, licenses, engagements, certificates, permissions, consents, approvals, concessions, remedies, guarantees and other instruments, if any, of whatsoever nature to which the Transferor Company is a party and which have not lapsed and are subsisting or having effect on the Effective Date shall be in full force and effect against or in favour of the Transferee Company, as the case may be, and may be enforced by or against the Transferee Company as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party thereto. The Transferee Company may enter into and / or issue and / or execute deeds, writings, addendums or confirmations or enter into any tripartite arrangements, confirmations or novations, to which the Transferor Company will, if necessary, also be party in order to give formal effect to the provisions of this Scheme, if so required or if so considered necessary. The Transferee Company shall be deemed to be authorised to execute any such deeds, writings or confirmations on behalf of the Transferor Company and to implement or carry out all formalities required on the part of the Transferor Company, to give effect to the provisions of this Scheme.
- b) Since each and every and all of the statutory permissions, approvals, consents, sanctions, remissions, special reservations, incentives, no-objection certificates, permits, quotas, entitlements, concessions, licenses, registrations, certificates, and other authorizations, howsoever described and in whatever form, of the Transferor Company shall stand transferred by the Order of the NCLT to the Transferee Company, the Transferee Company shall file the relevant intimations, if required, for the record of all of the statutory and regulatory authorities, who shall take them on file, pursuant to the vesting orders of the sanctioning NCLT.

9. Employees



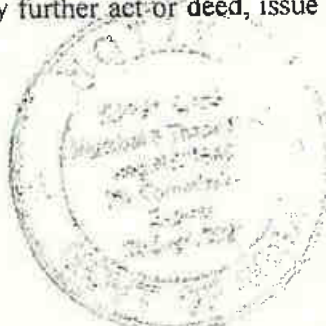
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- a) On the Scheme coming into effect, all Employees, of the Transferor Company in service on the Effective Date shall be deemed to have become employees of the Transferee Company without any break in their service and the terms and conditions of their employment with the Transferee Company shall not be less favorable than those applicable to them with reference to the Transferor Company on the Effective Date.
- b) It is expressly provided that, in so far as the gratuity fund, provident fund, superannuation fund, or any other special scheme(s) / fund(s) or similar benefits, if any, created or existing for the benefit of the Employees of the Transferor Company are concerned, upon the Scheme coming into effect, the Transferee Company shall stand substituted for the Transferor Company for all purposes whatsoever in relation to the administration or operation of such fund or funds or in relation to the obligation to make contributions to the said fund or funds in accordance with the provisions thereof as per the terms provided in the respective trust deeds, if any, to the end and intent that all rights, duties, powers and obligations of the Transferor Company in relation to such fund or funds shall become those of the Transferee Company and all the rights, duties and benefits of the Employees of the Transferor Company under such funds and trusts shall be protected, subject to the provisions of law for the time being in force. It is clarified that the services of the Employees of the Transferor Company will be treated as having been continuous for the purpose of the said fund or funds.

In so far as the provident fund, gratuity fund, superannuation fund or other special scheme(s) / fund(s) or similar benefits, if any, created or existing for the benefit of the Employees of the Transferor Company are concerned, upon the coming into effect of this Scheme, the balances lying in the accounts of the Employees of the Transferor Company in the said funds as on the Effective Date shall stand transferred from the respective trusts / funds of the Transferor Company to the corresponding trusts / funds set up by the Transferee Company.

10. Consideration

- a) Upon effectiveness of the Scheme and in consideration for the amalgamation of the Transferor Company with the Transferee Company, the Transferee Company shall, without any further act or deed, issue and allot equity shares of INR 10 each as fully

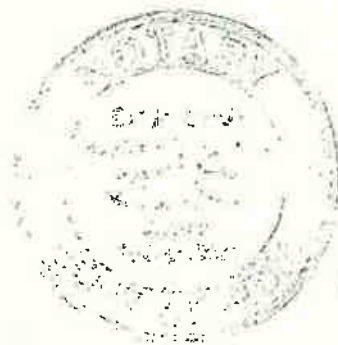


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paid up to the extent indicated below, to all the ordinary shareholders of the Transferor Company whose names are recorded in the register of members of the Transferor Company on the Record Date in the following proportion. It is clarified that the equity shares shall be issued and allotted under the 'Foreign Direct Investment' route (as set out under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019).

"41,770 (Forty One Thousand Seven Hundred and Seventy) fully paid up equity shares of the Transferee Company of INR 10 (Indian Rupees Ten only) each for every 10,000 (Ten Thousand) ordinary shares of the Transferor Company each fully paid up."

- b) Fraction shares arising as a result of the application of the above-mentioned proportion shall be rounded off to the nearest integer by the Board of Directors of the Transferee Company.
- c) The equity shares of the Transferee Company to be issued to the ordinary shareholders of the Transferor Company shall be subject to the memorandum and articles of association of the Transferee Company and shall be deemed to be in compliance with the Act and other notifications, guidelines issued by the statutory / regulatory authorities in India. Upon the Scheme becoming effective, the issued, subscribed and paid-up share capital of the Transferee Company shall stand suitably increased consequent upon the issuance and allotment of the said equity shares in accordance with this Clause 10. The approval of this Scheme by the shareholders of the Transferee Company shall be deemed to be in due compliance of the provisions of Section 42 and Section 62 and other applicable provisions of the Act for the issue and allotment of the said equity shares, as provided in this Scheme.
- d) The equity shares of the Transferee Company to be issued to the ordinary shareholders of the Transferor Company shall rank pari passu with the existing equity shares of the Transferee Company.



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11. Accounting Treatment

Upon this Scheme becoming effective, the Transferee Company shall account for the amalgamation of the Transferor Company in the books of accounts, in accordance with the 'Pooling of Interest Method', such that:

- a) The Transferee Company shall record all assets, liabilities and reserves of the Transferor Company vested in the Transferee Company pursuant to the Scheme, at their respective book values and in the same form as appearing in the financial statements of the Transferor Company. The identity of the reserves of the Transferor Companies shall be preserved and the Transferee Company shall record the reserves of the Transferor Company, at the book values thereof and in the same form in as appeared in the financial statements of the Transferor Company.
- b) In case of any differences in accounting policies between the Transferor Company and the Transferee Company, the accounting policies followed by the Transferee Company shall prevail to ensure that the financial statements reflect the financial position based on consistent accounting policies and the impact of such differences shall be adjusted in the revenue reserves of the Transferee Company.
- c) Prior period financial information in the financial statements of the Transferee Company shall be restated for the accounting impact of amalgamation, as if the amalgamation had occurred from the beginning of the preceding period, irrespective of actual date of the combination.
- d) The inter-company balances between Transferee Company and the Transferor Company, if any, appearing in the books of the Transferee Company shall stand cancelled and there shall be no further right or obligation in that behalf.
- e) The Transferee Company shall record the equity shares issued to the shareholders of the Transferor Company in accordance with the Clause 10 of the Scheme at nominal value.
- f) The surplus, if any arising after taking the effect of clause (a) above and after giving the effect of the adjustments referred to in clause (d), over the face value of

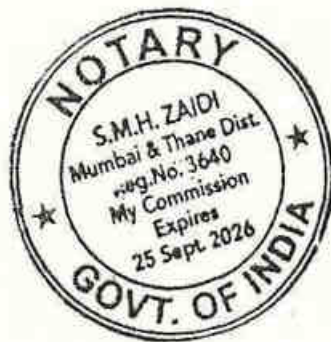


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equity shares issued and recorded in the books of the Transferee Company as per clause (e) above, shall be transferred to the capital reserves in the financial statements of the Transferee Company and shall be presented separately from other capital reserves of the Transferee Company with disclosure of its nature and purpose in the notes to the financial statements of Transferee Company. In case there is a deficit, the same shall be adjusted against the capital or revenue reserves of the Transferee Company, in that order, and balance if any, shall be presented as 'Amalgamation Adjustment Account' under 'Other Equity'



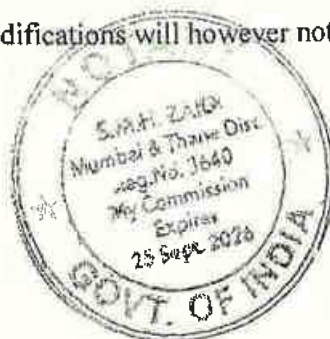
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PART C

**GENERAL TERMS AND CONDITIONS AND OTHER MATTERS
CONSEQUENTIAL AND INTEGRALLY CONNECTED WITH THE SCHEME**

12. Compliance with Tax Laws

- a) This Scheme, has been drawn up to comply with the conditions relating to 'Amalgamation' as specified under the Tax Laws, specifically Section 2(1B) of the IT Act, which include the following:
- i) all the property of the Transferor Company immediately before the amalgamation becomes the property of the Transferee Company by virtue of the amalgamation;
 - ii) all the liabilities of the Transferor Company immediately before the amalgamation become the liabilities of the Transferee Company by virtue of the amalgamation;
 - iii) shareholders holding not less than three-fourths in value of the shares in the Transferor Company (other than shares already held therein immediately before the amalgamation by, or by a nominee for, the Transferee Company or its subsidiary) become shareholders of the Transferee Company by virtue of the amalgamation, otherwise than as a result of the acquisition of the property of one Company by the other Company pursuant to the purchase of such property by the other Company or as a result of the distribution of such property to the other Company after the winding up of the first mentioned Company.
- b) This Scheme has been drawn up to comply with the conditions relating to 'Amalgamation' as specified under the IT Act, specifically Section 2(1B) of the IT Act. If any of the terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of the section 2(1B) of the IT Act at a later date including resulting from an amendment of law or for any other reason whatsoever, the provisions of the said section of the IT Act shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) of the IT Act. Such modifications will however not affect the other parts of the Scheme



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- c) If any terms or provisions of the Scheme are found to be or interpreted to be inconsistent with any of the said provisions at a later date, whether as a result of any amendment of law or any judicial or executive interpretation or for any other reason whatsoever, the aforesaid provisions of the Tax Laws shall prevail. This Scheme shall then stand modified to the extent determined necessary to comply with the said provisions. Notwithstanding the other provisions of this Scheme, the power to make such amendments as may become necessary shall vest with the Board of Directors of the Transferee Company, which power shall be exercised reasonably in the best interests of the Companies and their stakeholders, and which power can be exercised at any time, whether before or after the Effective Date.

13. Provisions in Mauritius relating to the Transferor Company

- a) The Board and shareholders of the Transferor Company shall pass such resolutions and the Transferor Company shall execute and file all such documents with the ROC having jurisdiction over the Transferor Company and other Appropriate Authority and do all such acts and deeds as may be necessary to give effect to the merger of the Transferor Company with the Transferee Company (including but not limited to undertaking the conversion of the Transferor Company to an authorised company).
- b) The Board and shareholders of the Transferor Company shall pass such resolutions and the Transferee Company shall execute and file all such documents with the ROC having jurisdiction over the Transferor Company and other Appropriate Authority and do all such acts and deeds as may be necessary to give effect to the merger of the Transferor Company with the Transferee Company including filing of the following with the ROC having jurisdiction over the Transferor Company:
- i) an agreement that a service of process may be effected on the Transferee Company in the Republic of Mauritius in respect of proceedings for the enforcement of any claim, debt, liability or obligation, if any, of the Transferor Company or in respect of proceedings for the enforcement of the rights of a dissenting member of the Transferor Company against the Transferee Company;



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- ii) an irrevocable appointment of the Transferor Company's registered agent in the Republic of Mauritius as the agent of the Transferee Company to accept service of process in proceedings referred to in the above sub-clause;
- iii) if required, an agreement that the Transferee Company shall promptly pay to the dissenting members, if any, of the Transferor Company, the amount, if any, to which they are entitled under the Mauritius Act, with respect to the rights of dissenting members; and
- iv) A certificate of merger issued by the NCLT / Appropriate Authority in the Republic of India (i.e. an order passed by the Tribunal approving the Scheme).

14. Removal of the Transferor Company from the Registers of the ROC having jurisdiction over the Transferor Company

Upon the receipt of the order of the NCLT approving the Scheme, the Transferor Company shall file (a) the certificate of merger (i.e. order of NCLT approving the Scheme); (b) the relevant board and shareholder resolutions passed by the Transferor Company taking on record the Scheme and the approval of the NCLT; and (c) the copy of the Transferor Company's Authorized Company License with the Financial Services Commissions, Mauritius and the ROC having jurisdiction over the Transferor Company, and the ROC having jurisdiction over the Transferor Company shall remove the Transferor Company from its registers.

15. Saving of concluded transactions

Amalgamation of the Transferor Company with the Transferee Company under Clause 4 and the continuance of proceedings by or against the Transferor Company under Clause 7 and the effectiveness of contracts and deeds under Clause 8 shall not affect any transaction or proceedings already concluded by the Transferor Company on or before the Appointed Date and after the Appointed Date till the Effective Date, to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Company in respect thereto as done and executed on behalf of itself.



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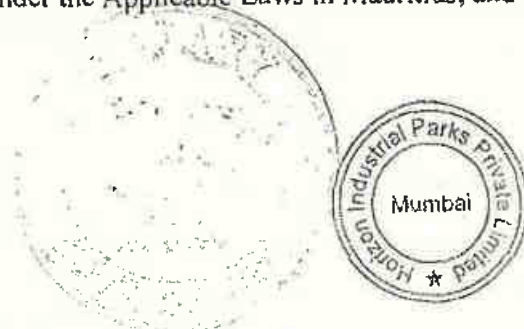
16. Application to the NCLT

- a) The Transferee Company, if required, shall, with all reasonable dispatch, make applications and petitions to the NCLT under Sections 230 to 232 read with Section 234 of the Act and other applicable provisions, if any, for sanction of this Scheme under the provisions of law, including an application for seeking orders for dispensing with or convening, holding and conducting of the meetings of the equity shareholders of the Transferee Company, if required, as may be directed by the NCLT.
- b) The Transferor Company shall initiate and pursue all actions necessary under the Applicable Laws of Relevant Jurisdictions. The Transferor Company shall take all necessary steps for sanctioning of this Scheme and for their dissolution without winding up, and apply for and obtain such other approvals, if any, required under the Applicable Laws.

17. Conditionality of the Scheme

The Scheme is conditional upon and subject to:

- i) the approval of the Scheme by the requisite majority of shareholders and creditors of the Transferee Company by the convening of a meeting or dispensation being granted by the NCLT;
- ii) the Scheme being approved by the NCLT under Sections 230 to 232 read with Section 234 of the Act and other applicable provisions, if any, of the Act or other appropriate authorities under the Mauritius Act;
- iii) authenticated certified copy of above order(s) of the NCLT being filed with the Registrar of Companies, Mauritius and ROC;
- iv) receipt of all authorisations, consents, clearances, permissions and approvals in respect of or in connection with the Scheme from Appropriate Authorities as are required under the Applicable Laws in Mauritius; and



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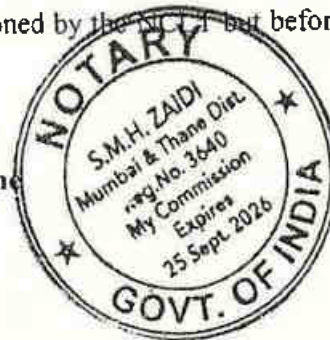
- v) receipt of all authorisations, consents, clearances, permissions and approvals in respect of or in connection with the Scheme from Appropriate Authorities as are required under the Applicable Laws in India.

18. Effect of non-approvals

In case the Scheme is not sanctioned by the NCLT, or in the event any of the consents, approvals, permissions, resolutions, agreements, sanctions or conditions enumerated in the Scheme not being obtained or complied or for any other reason, the Scheme cannot be implemented, the Scheme shall become null and void, and the Transferee Company shall bear the entire cost, charges and expenses in connection with the Scheme. Further the following may be noted:

- i) In the event of non-receipt of approval, no rights and liabilities whatsoever shall accrue to or be incurred inter se by the Transferor Company and the Transferee Company or their respective shareholders or creditors or employees or any other person save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any right, liability or obligation which has arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out in accordance with the Applicable Law and in such case, the Transferee Company shall bear all costs incidental to or arising out of such revocation / cancellation of the Scheme.
- ii) The Board of Directors of the Transferor Company and the Transferee Company shall be entitled to revoke, cancel and declare the Scheme of no effect, if the Boards of Directors are of the view that the coming into effect of the Scheme could have adverse implications on the Transferor Company and / or the Transferee Company even after the Scheme has been sanctioned by the NCLT but before the same has been actually given effect to.

19. Modification or amendment to the Scheme



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Subject to approval of the NCLT, the Board of Directors of the Transferor Company and the Transferee Company may assent to any modification(s) or amendment(s) in this Scheme which may be considered necessary or desirable for settling any question or doubt or difficulty that may arise for implementing and / or carrying out the Scheme and after the dissolution of the Transferor Company, the Board of Directors of the Transferee Company be and are hereby authorised to take such steps and do all acts, deeds and things as may be necessary, desirable or proper to give effect to this Scheme and to resolve any doubts, difficulties or questions whether by reason of any orders of the NCLT or of any directive or orders of any other authorities or otherwise howsoever arising out of, under or by virtue of this Scheme and / or any matters concerning or connected therewith.

20. Severability

If any part or section of this Scheme is found to be unworkable for any reason whatsoever, the same shall not, subject to the decision of the Board of Directors of the Transferor Company and the Transferee Company, affect the adoption or validity or interpretation of the other parts and / or provisions of this Scheme. It is hereby clarified that the Board of Directors of the Transferor Company and the Transferee Company, as the case may be, in their absolute discretion, adopt any part of this Scheme or declare the entire Scheme to be null and void and in that event no rights and liabilities whatsoever shall accrue to or be incurred inter-se by the parties or their shareholders or creditors or employees or any other person. Costs, if any, involved in such an event, shall be borne by the Transferee Company.

21. Costs, charges and expenses

All costs, charges, taxes including duties (including the stamp duty and / or transfer charges, if any, applicable in relation to this Scheme), levies and all other expenses (save as expressly otherwise agreed) arising out of or incurred in carrying out and implementing this Scheme and matters incidental thereto shall be borne and paid by the Transferee Company and shall be deemed to be expenditure incurred wholly and exclusively for the purposes of amalgamation.



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Certified True Copy
Date of Application 10/06/2025
Number of Pages 27
Fee Paid Rs. 135/-
Applicant called for collection copy on 16/6/25
Copy prepared on 16/6/2025
Copy Issued on 16/6/2025

P. H. H. H.
Assistant Registrar
National Company Law Tribunal Mumbai Bench